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26-CIV-01305 MAVERICK JACK'S, LLC, ET AL. VS. MASH PETROLEUM INC., ET AL.

LINE 1

MAVERICK JACK'S, LLC
MASH PETROLEUM INC.

NANCI E. NISHIMURA
GREGORY C. BRANDT

DEFENDANT: MASH PETROLEUM, INC'S APPLICATION OF ABIGAIL M. ORGERON FOR PRO HAC VICE ADMISSION
PURSUANT TO CALIFORNIA RULES OF COURTRULE 9.40

TENTATIVE RULING:

The court **GRANTS** defendants A&A Gas, Inc. and Mash Petroleum Inc.'s unopposed application to admit Abigail M. Obregon pro hac vice.

California Rules of Court, Rule 9.40 governs applications to appear pro hac vice and provides in pertinent part:

(c) Application

(1) Application in superior court

A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.

...

(d) Contents of application

The application must state:

(1) The applicant's residence and office address;

(2) The courts to which the applicant has been admitted to practice and the dates of admission;

(3) That the applicant is a licensee in good standing in those courts;

(4) That the applicant is not currently suspended or disbarred in any court;

(5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and

(6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

The application must also demonstrate that the correct fee was paid to the State Bar.

The current application satisfies all these requirements.

The court notes as a courtesy the requirement of Government Code section 70617 subdivision (e)(2) which provides that "on or before the anniversary of the date the application was granted, an annual renewal fee for each year that the attorney maintains pro hac vice status in the case in which the

application was granted” must be paid. Failure to pay the fees can have consequences. (See e.g. *Golba v. Dick’s Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1255 [declining to award fees].)

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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25-CIV-05681
LINE 2

MARY URBAN, INDIVIDUALLY, AND ON BEHALF OF AGGRIEVED EMPLOYEES PURSUANT
TO THE CALIFORNIA PRIVATE ATTORNEYS GENERAL ACT VS FAMILIAR SURROUNDINGS
HOME CARE LLC

MARY URBAN
FAMILIAR SURROUNDINGS HOME CARE LLC

SAGE S. STONE
AMBER J. BABIN

DEFENDANT: FAMILIAR SURROUNDINGS HOME CARE LLC'S MOTION TO COMPEL ARBITRATION AND TO STAY

TENTATIVE RULING:

Defendant Familiar Surroundings Home Care LLC's ("Defendant") Motion to Compel Arbitration of Plaintiff's claims is DENIED.

Objections to Evidence

Plaintiff's objections to the Supplemental Declaration of Laura Wentling are OVERRULED.

On July 2, 2026, Plaintiff submitted Objections to the Supplemental Declaration of Laura Wentling In Support of Defendant's Reply Brief. However, according to the Court's docket, Defendant's Reply Brief and Ms. Wentling's supplemental declaration were not filed until July 14, 2026.

This non-chronological filing appears to have caused issues, because the excerpts to which Plaintiff objects are not located at the paragraphs or line numbers that Plaintiff cites. For the first through sixth objections, the text that Plaintiff objects to does not appear in the Supplemental Wentling Declaration, and those objections are overruled on those grounds.

Turning to the substance of the remaining objections, Plaintiff first objects to each excerpt on the grounds that Defendant improperly submits new evidence on reply without having provided an explanation for inclusion of the new information.

While arguably Defendant should have easily anticipated the FAA and unconscionability arguments, to which the supplemental declaration responds, and the court seriously considered sustaining Plaintiff's objection, the Court finds that Defendant has provided an explanation, and Defendant's reply evidence in the form of the Supplemental Wentling Declaration is admitted. The Agreement, which was submitted as part of both parties' motions, references the use of the telephony system for recordkeeping; and in response to Plaintiff's argument that the FAA does not apply, Ms. Wentling's Supplemental Declaration clarifies that the telephony system used is a national system. (See Supp. Wentling Dec, ¶¶ 13-16.) That is not as true as to Ms. Wentling's explanations of the payroll and onboarding systems. The Court will certainly give the Plaintiff ample opportunity to orally rebut this evidence at the hearing if Plaintiff chooses.

The remaining excerpts address Plaintiff having signed a prior employment agreement, which both parties admitted in their motions, and Plaintiff's language preferences, which Defendant could not have as easily anticipated Plaintiff would raise as a ground for unconscionability. This evidence was therefore properly presented as rebuttal evidence on reply.
